

munity a Presidential aide first must show that the responsibilities of his office embraced a function so sensitive as to require a total shield from liability.²⁰ He then must demonstrate that he was discharging the protected function when performing the act for which liability is asserted.²¹

Applying these standards to the claims advanced by petitioners Harlow and Butterfield, we cannot conclude on the record before us that either has shown that "public policy requires [for any of the functions of his office] an exemption of [absolute] scope." *Butz*, 438 U. S., at 506. Nor, assuming that petitioners did have functions for which absolute immunity would be warranted, could we now conclude that the acts charged in this lawsuit—if taken at all—would lie within the protected area. We do not, however, foreclose the possibility that petitioners, on remand, could satisfy the standards properly applicable to their claims.

IV

Even if they cannot establish that their official functions require absolute immunity, petitioners assert that public policy at least mandates an application of the qualified immunity standard that would permit the defeat of insubstantial claims without resort to trial. We agree.

A

The resolution of immunity questions inherently requires a balance between the evils inevitable in any available alterna-

²⁰ Here as elsewhere the relevant judicial inquiries would encompass considerations of public policy, the importance of which should be confirmed either by reference to the common law or, more likely, our constitutional heritage and structure. See *Nixon v. Fitzgerald*, *ante*, at 747–748.

²¹ The need for such an inquiry is implicit in *Butz v. Economou*, *supra*, at 508–517; see *Imbler v. Pachtman*, *supra*, at 430–431. Cases involving immunity under the Speech and Debate Clause have inquired explicitly into whether particular acts and activities qualified for the protection of the Clause. See, e. g., *Hutchinson v. Proxmire*, 443 U. S. 111 (1979); *Doe v. McMillan*, 412 U. S. 306 (1973); *Gravel v. United States*, *supra*.